



File No.: EXP202317287

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on October 9, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On October 9, 2023, a complaint was received by this Agency submitted by Mr. A.A.A. (hereinafter, the complainant) against FRAIKIN ALQUILER DE VEHÍCULOS, S.A. (hereinafter, the respondent) for not having duly addressed his right to erasure.

The complainant states that, after requesting access to his personal data from the credit information system ASNEF, he became aware of the inclusion of his personal data therein by the respondent without prior notification. Therefore, he requested the erasure of his data from ASNEF, which, due to the lack of response from the reporting entity, proceeded to the precautionary removal of the complainant's data. However, the respondent re-included his data in ASNEF. The complainant reiterated the request for erasure to ASNEF, with the same result. According to the complainant, these events occurred "no less than six times throughout 2023."

He provides copies of the responses from ASNEF dated July 10, August 2, and August 29, 2023.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations, without any response being submitted to this Agency.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on January 9, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, to present any arguments they deemed appropriate within ten working days.

The respondent states, in summary, and as far as this procedure is concerned, that once they received the transfer of the complaint sent by this AEPD on December 1, 2023, "(...) our company immediately proceeded, on the following day, December 11 of the aforementioned year 2023, to definitively remove the referred debtor" from ASNEF.

FOURTH: After examining the document submitted by the respondent, it was forwarded to the complainant, so that, within ten working days, he could submit any arguments he deemed appropriate, without any arguments being submitted within the established timeframe.

The complainant indicates that the respondent acknowledges the facts.

He adds that "(...) this is not a possible prescription of actions to claim a debt regarding what is being discussed here, but rather the more than undoubted passage of the five-year period established by data protection legislation for the debt data to be incorporated into a credit information system, a passage that was well known by Fraikin as evidenced by the fact that when including said data in ASNEF, they informed that system of an incorrect and much more recent expiration date than the actual one, in order to circumvent the restrictions that ASNEF's own platform would have presented for such inclusion had the true expiration date been introduced."

FIFTH: Having granted a hearing to the respondent, there is no record that they have submitted any arguments.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to provide evidence of having given the due response to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on November 2, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/7

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller. The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, it shall, taking into account the available technology and the cost of implementation, take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replications of the same.

3. Paragraphs 1 and 2 shall not apply when the processing is necessary:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
5/7

- a) to exercise the right to freedom of expression and information;
- b) for the fulfillment of a legal obligation that requires the processing of data imposed by Union or Member State law applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in

paragraph 1 could make impossible or seriously hinder the achievement of the objectives of such processing, or
e) for the formulation, exercise, or defense of claims."

V

Joint Responsibility

Article 20 of the LOPDGDD, concerning credit information systems, in its paragraph 2 establishes that the entities maintaining the system and the creditors, regarding the processing of data related to their debtors, shall be considered joint controllers of the data processing, applying the provisions established by Article 26 of Regulation (EU) 2016/679, with the creditor entity being responsible for ensuring that the requirements for inclusion in the debt system are met, being liable for its non-existence or inaccuracy.

Article 26 of the GDPR, Joint Controllers, states that

"1. When two or more controllers jointly determine the purposes and means of processing, they shall be considered joint controllers of the processing. The joint controllers shall determine in a transparent manner and by mutual agreement their respective responsibilities in complying with the obligations imposed by this Regulation, in particular regarding the exercise of the data subject's rights and their respective obligations to provide information referred to in Articles 13 and 14, unless, and to the extent that, their respective responsibilities are governed by Union or Member State law applicable to them. Such an agreement may designate a contact point for data subjects.

2. The agreement referred to in paragraph 1 shall duly reflect the respective roles and relationships of the joint controllers in relation to the data subjects. The essential elements of the agreement shall be made available to the data subject.

3. Regardless of the terms of the agreement referred to in paragraph 1, data subjects may exercise the rights conferred on them by this Regulation against, and in respect of, each of the controllers."

On the other hand, the Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that "When two or more controllers process data jointly, the provision of the joint controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially regarding the...

6/7

Response to access requests will not affect the rights of the data subjects against the data controller to whom their request is directed.

VI

Conclusion

The rights procedure is initiated as a result of the lack of attention to one of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In this case, it has been established that the claimant requested the deletion of their data from Asnef-Equifax and that this entity proceeded to the precautionary deletion of the data due to not having received a response from the reporting entity (the defendant). Furthermore, it is noted that this circumstance occurred on several occasions.

From the examination of the documentation provided, it is observed that, although the claimant did not directly address the defendant requesting the deletion of their data, the defendant was aware of the request since Asnef communicated the petition to them, in accordance with the provisions of Article 20 of the LOPDGDD regarding co-responsibility, without the creditor entity responding to the exercised right of deletion.

Notwithstanding the above, during the processing of this procedure, the defendant has indicated that "(...) our company proceeded immediately, the following day, December 11 of the referred year 2023, to carry out the definitive deletion of the referred debtor" from Asnef, but does not prove having attended to the request made by the claimant, sending them the required response to their request. Thus, it cannot be accepted that the response that corresponds to be given can be manifested on the occasion of a mere administrative procedure, such as the formulation of allegations due to the present procedure, initiated precisely for not duly attending to the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where it does not meet the established requirements, in which case the recipient of such a request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Since a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the exercise of rights request is not attached, it is appropriate to uphold the complaint that originated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge FRAIKIN ALQUILER DE VEHÍCULOS, S.A. with NIF A61427183, to send the claimant a certification addressing the requested right or to deny it with justification indicating the reasons why the request cannot be attended to, within ten working days following the notification of this resolution, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to FRAIKIN ALQUILER DE VEHÍCULOS, S.A. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es